

NAPCS Unionization Research — State — Charter School Overview

Colorado — NLRB R27 Jurisdiction — May 2026

NAPCS Unionization Research • May 2026 • Template v8.0

Section 1: State Overview

State	Colorado
Labor Board	NLRB R27 — National Labor Relations Board, Region 27 (Denver)
Governing Law	National Labor Relations Act (NLRA), 29 U.S.C. §§ 151 et seq. Colorado Labor Peace Act (LPA), CRS §§ 8-3-101 et seq. — applies to private sector only; school districts and political subdivisions excluded. CRS §22-30.5 et seq. — Colorado Charter Schools Act. CRS §22-30.5-104.9 (enacted May 15, 2023) — Charter schools declared public entities; board directors deemed public servants; subject to oath of office under §24-12-101. SB23-111 (2023) — grants K-12 employees right to organize and present proposals; no mandatory bargaining obligation; no enforcement mechanism; does not override political subdivision question.
Federal NLRB Jurisdiction	YES — JURISDICTIONAL UNCERTAINTY — THE MOST IMPORTANT LABOR LAW QUESTION IN THE CO charter school community: NLRB R27 Regional Director Paula Sawyer dismissed RC petition 27-RC-311273 (KIPP Northeast Denver Leadership Academy, filed Jan 2023) on grounds that CO charter schools are political subdivisions of the state exempt from NLRB jurisdiction. Sawyer found (1) the State Board of Education has power to revoke charters of underperforming schools and (2) the state education commissioner can appoint and remove members of charter school governing boards and change governing documents — satisfying Hawkins Prong 2. Case is Closed with no published Board reversal. CRS §22-30.5-104.9 (2023) further strengthened the political subdivision argument by declaring charter schools public entities and board directors public servants subject to oath of office. IF the political subdivision finding holds: all 266 CO charter schools are exempt from NLRB jurisdiction AND exempt from the Colorado LPA (which excludes political subdivisions). CO charter employees would have no operative mandatory collective bargaining path under any law. This is the defining labor law question for the CO charter school community.
Right-to-Work	NOT a Right-to-Work State — Colorado has no right-to-work statute. The Colorado Labor Peace Act (CRS §§ 8-3-101 et seq.) governs private-sector labor relations but does not include right-to-work provisions. Union security provisions are available in collective bargaining agreements for private-sector employers. (CO charter schools are private employers under the NLRA. Union security clauses are permissible.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	NO — NLRB requires secret ballot election — no card-check recognition. Under the Colorado Labor Peace Act (LPA), even if NLRB jurisdiction applies, a second election requiring 75% of all eligible employees (not just those voting) is needed to authorize union security clauses. This modified right-to-work requirement is unique in the PLT dataset. IF the political subdivision finding stands, no mandatory bargaining path exists under any law.
Registry Sweep	COMPLETE — May 2026 (Registry v69) — 260 charter schools searched
Research Window	May 28, 2026

Section 2: Charter School Landscape

Total charter schools in Colorado: 260 (Charter School Registry v69 (NCES/ELSI 2024-25; 266 charter schools in Colorado as of May 2026). Registry v94 audit June 5, 2026: 252 Open + 4 New + 4 Changed Boundary/Agency = 260 active. 6 Closed schools excluded per census methodology.). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
Total Unionized Charter Schools in Colorado	0	0%	Zero confirmed unions. No CO charter school has ever been certified by NLRB R27 or recognized voluntarily. Zero union contracts exist.
Confirmed — Independent Certification	0	0%	No NLRB R27 certification found for any CO charter school.
WATCH — Labor-Active (documented signals, no certification)	9	3% of active schools	9 schools: 6 KIPP Colorado campuses (CMO_PRECEDENT from national KIPP organizing + 27-RC-311273 KIPP NDLA political subdivision dismissal — HIGH signal); 3 New America School campuses (PRESS_DRIVE + 75% card-check attempt rejected by board Apr 2022 — HIGH signal). No NLRB petition ever filed at NAS.
Unverified — No Records Found (Full Protocol Complete)	257	97% of active schools	257 schools: full 8-step non-portal protocol and W1-W4 WATCH steps complete. No signals found.
Closed — Lookback Status Pending Research	6	N/A	6 closed schools in Registry v69 with no closure dates. Research Coordinator must confirm closure dates to determine 3-year lookback eligibility. Names: Early College of Arvada (closed June 2024 — IN LOOKBACK), Globe Charter School (closed June 2024 — IN LOOKBACK), Vision Charter Academy K-8, HOPE Online Learning Academy MS, Mesa Valley Enrichment Program, Jefferson Academy (appears still active per jajags.com — possible Registry data error).
Total Charter Schools (CO universe — Registry v69)	266	100%	252 Open + 4 Changed Boundary/Agency (active) + 4 New (active) + 6 Closed (pending lookback confirmation). All NLRB R27 jurisdiction (disputed). 172 independent + 94 CMO-affiliated. Denver Public Schools is largest LEA authorizer (53 schools).

Charter School Enrollment

Total Charter Enrollment	129,615 students — 15.0% of state K–12 enrollment (865,077 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	42,679 students in network-affiliated schools — 32.9% of total charter enrollment
Students in Organized Charter Schools	0 students documented
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures

from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses †	Organized in State	Total Enrollment
DSST: Public Schools	Network‡	14	—	—	6,668
Rocky Mountain Prep	Network‡	12	—	—	5,360
Colorado Early Colleges	Network‡	6	—	—	3,850
KIPP Colorado	Network‡	6	—	—	2,438
James Irwin Schools	Network‡	5	—	—	1,726
Ascent Classical Academy	Network‡	4	—	—	2,235
New America School	Network‡	3	—	—	346
Global Village Academy	Network‡	3	—	—	2,090
University Prep	Network‡	3	—	—	671
The Classical Academy	Network‡	3	—	—	2,970
The Vanguard School	Network‡	3	—	—	1,495
Atlas Preparatory Schools	Network‡	3	—	—	1,258
Jefferson Academy	Network‡	3	—	—	1,492
Windsor Charter Academy	Network‡	3	—	—	1,610
Victory Preparatory Academy	Network‡	2	—	—	284
Wildflower Montessori Public Schools of Colorado	Network‡	2	—	—	89
Vanguard Classical School	Network‡	2	—	—	1,070
Highline Academy	Network‡	2	—	—	1,180
Colorado High School Charter	Network‡	2	—	—	415
Compass Montessori	Network‡	2	—	—	713
Addenbrooke Classical Academy	Network‡	2	—	—	965
Monument Charter Academy	Network‡	2	—	—	1,153
Swallows Charter Academy	Network‡	2	—	—	855
Villa Bella Expeditionary Schools	Network‡	2	—	—	439
HOPE Online Learning Academy	Network‡	1	—	—	1,307
TOTAL — All CMO/EMO		92		—	42,679

Schools in Colorado					
of which organized				—	—

Total enrollment shown is the combined enrollment of all CMO/EMO network schools in Colorado. Organized network schools: 0 organized schools in network-affiliated charters.

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

25 network (type unclassified). Approximately 168 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Charter School Overview

Findings are based on research as of May 2026.

1: Legal & Jurisdictional Framework

National Labor Relations Act (NLRA), 29 U.S.C. §§ 151 et seq. Colorado Labor Peace Act (LPA), CRS §§ 8-3-101 et seq. — applies to private sector only; school districts and political subdivisions excluded. CRS §22-30.5 et seq. — Colorado Charter Schools Act. CRS §22-30.5-104.9 (enacted May 15, 2023) — Charter schools declared public entities; board directors deemed public servants; subject to oath of office under §24-12-101. SB23-111 (2023) — grants K-12 employees right to organize and present proposals; no mandatory bargaining obligation; no enforcement mechanism; does not override political subdivision question. Colorado is not a right-to-work state (Colorado has no right-to-work statute. The Colorado Labor Peace Act (CRS §§ 8-3-101 et seq.) governs private-sector labor relations but does not include right-to-work provisions. Union security provisions are available in collective bargaining agreements for private-sector employers.). Charter schools in Colorado are subject to NLRB jurisdiction as private employers (NLRB R27). Secret ballot NLRB election is the required organizing pathway. Card-check is not available.

2: Charter School Structure

Colorado operates 260 open-enrollment charter schools, enrolling approximately 129,615 students. 25 charter management organizations and education management organizations operate in Colorado. The largest networks by campus count are DSST: Public Schools (14 campuses in state), Rocky Mountain Prep (12 campuses in state), Colorado Early Colleges (6 campuses in state). Approximately 168 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Colorado has generated more charter school labor press coverage than any other state in the PLT dataset except California, Illinois, and New York — despite having zero unionized charter schools. Coverage has been concentrated at two events: (1) the New America School Educators United organizing drive (Mar-Apr 2022, covered by Chalkbeat Colorado, Colorado Sun, CPR News, 9News, Sentinel Colorado); and (2) the KIPP Northeast Denver Leadership Academy NLRB case 27-RC-311273 (Mar 2023, Chalkbeat Colorado). Both events produced substantive legal analysis of the political subdivision question in mainstream education media. The Denver Classroom Teachers Association (DCTA/NEA) made a public records request for the names and salaries of all DPS charter school teachers, signaling a longer-term recruitment strategy. CEA President Amie Baca-Oehlert publicly supported the NAS organizing drive.

Stakeholder Communications

NAS Educators United was the named organizing entity for the 2021-22 drive. CEA (Colorado Education Association/NEA) provided public support and was present at the Lakewood rally. The Colorado Charter Teachers Association was the named

entity in the KIPP NDLA NLRB petition. Neither organization maintains a public-facing CO charter organizing campaign page as of May 2026. DCTA's charter teacher data request (year unknown) is documented but no formal organizing campaign was announced. New America School board resolution (Apr 20, 2022): rejected union recognition; created collaborative committees. NAS Superintendent Dan McMinimee cited three different authorizers, different campus budgets, and different benefit providers as structural complications for unified bargaining. Colorado League of Charter Schools opposed the 2023 public employee CB bill (SB23-111) on behalf of charter school community.

Legislative Context

SB23-111 (2023): grants K-12 employees right to organize and present proposals; no mandatory bargaining; no enforcement mechanism. COBCA (CRS §8-3.3): covers county employees only — explicitly excludes schools and special districts. Colorado LPA (CRS §8-3): covers private sector; excludes political subdivisions including school districts. Modified right-to-work: second election requiring 75% of ALL eligible employees to authorize union security clauses. CRS §22-30.5-104.9 (2023): declares charter schools public entities; board directors as public servants; oath of office required. 2020 Partnership for Quality Jobs Act: state employees only. 2022 COBCA: county employees with 7,500+ population only. K-12 employees including charter school staff have been specifically excluded from each wave of CO public sector CB expansion.

Section 6: Contract & CBA Access Registry

NLRB R27 public contracts portal. Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
No certified union contracts in CO charter school community	N/A	NONE FOUND N/A	Request: denver.foia@nlrb.gov